

		Defendant shall serve notice of this Order.
6.	2024-1383091 Chambers vs. Johnson	Defendant Dehghanmanesh seeks an order allowing Stephen B. Beranek, Esq. and Michael Gardineer, Esq. to appear as counsel <i>pro hac vice</i> for him in this action. Both Counsel have complied with CRC Rule 9.40. Accordingly, Counsels' unopposed application is granted. Defendant Dehghanmanesh shall give notice.
7.	2023-1330417 Burch vs. San Juan Capistrano Unified School District	Demurrer to Third Amended Petition The demurrer by Respondent Capistrano Unified School District, erroneously sued as San Juan Capistrano Unified School District ("District") to the Third Amended Verified Petition for Writ of Mandate ("TAP") filed by petitioners Daniel Burch ("Burch") and Quantum Education Dynamics ("Quantum") (collectively, "Petitioners") is overruled in part and sustained in part with 15 days leave to amend. District's requests for the Court to take judicial notice of the directives issued by CalSTRS in 2018, 2019, and 2022 are granted. (Evid. Code § 452, subd. (b); TAP, ¶¶ 12-13.) District's request for the Court to take judicial notice of the directive issued by CalSTRS in 2023 is denied. This directive is directed at fiscal year 2022-23 and 2023-24, after the time period at issue in the TAP and do not appear relevant to the allegations in the TAP. (<i>Bell v. Greg Agee Construction, Inc.</i> (2004) 125 Cal.App.4th 453, 459, fn. 2.) District's unopposed request for the Court to take judicial notice of District's Board policy number 3300(b) should be granted. (Evid. Code, § 452, subd. (b); <i>Warmington Old Town Associates, L.P. v. Tustin Unified School Dist.</i> (2002) 101 Cal.App.4th 840, 858, fn. 3.) <u>First cause of action for petition for writ of mandate</u> Failure to exhaust administrative remedies "A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer." (Code Civ. Proc., § 430.41, subd. (b).)